

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Writ Petition No. 4569 of 2024

In the matter of:

An application under article 102 of the
Constitution of the People's Republic of
Bangladesh.

AND

In the matter of:

Md. Maksud Chowdhury

... Petitioner

-Versus-

Government of Bangladesh and others

... Respondents

Mr. Kumar Kishore Chowdhury, Advocate

...For the petitioner

Mr. Rusho Mosatafa, Advocate

...For the respondent Nos. 4-7

Mr. Md. Monjur Alam, D.A.G. with

Dr. Mohammad Soeb Mahmud, A.A.G.

Mr. Md. Abul Hasan, A.A.G.

Mr. Sk. Naser Wahed (Shemon), A.A.G.

Mr. Md. Azadul Islam (Azad), A.A.G and

Mr. Md. Tareq Rahman, A.A.G

... For the respondents

Judgment on:14.08.2025

Present:

Justice Sardar Md. Rashed Jahangir

and

Justice Md. Abdul Mannan

Sardar Md. Rashed Jahangir, J:

On an application under article 102 of the Constitution of the
People's Republic of Bangladesh, the Rule Nisi was issued on
25.04.2024 as follows:

“Let a Rule Nisi be issued calling upon the respondents to show cause as to why the inaction of respondent Nos. 2 and 3 to exercise their jurisdiction as contemplated under section. 49(1) (Kha) and (Cha) of the Banking Companies Act, 1991 to give necessary direction upon respondent Nos. 4 to 7 to refrain from disposing of the petitioner's mortgaged properties pursuant to the second notice of auction dated 15.01.2024 shall not be declared to be without lawful authority and to be of no legal effect and further, as to why the notice of 2nd notice of auction published in the ‘Daily Purbakon’ on 15.01.2024 by respondent no. 7 under section 12(3) of the Artha Rin Adalat Ain, 2003, as evidenced by Annexure-‘E’, shall not be declared to be without lawful authority and to be of no legal effect and/or pass such other or further order or orders passed as to this Court may seem fit and proper.”

Mr. Kumar Kishore Chowdhury, learned Advocate for the petitioner submits that the petitioner is continuing to make payment the outstanding dues of the bank and is willing to continue the repayment.

He next submits that the notice purportedly published under section 12(3) of the Artha Rin Adalat Ain, 2003 for selling the property in auction to be held on 12.02.2024 is without lawful authority and is of no legal effect.

From the record it appears that the first auction notice published in the ‘Daily Samakal’ on 23.05.2023 under the authority of section 12 of the Artha Rin Adalat Ain, 2003 could

not be proceeded due to filing of Writ Petition No. 6889 of 2023 at the instance of the petitioner and this Court ultimately discharged the Rule for non-compliance of the Court Order.

It further appears that since the first auction cannot be held due to the undue interference of the petitioner and as such, we do not find any illegality in holding the second auction, when the earlier writ petitioner was filed only to frustrate the auction process and ultimately was discharged by default of the petitioner.

Under the case in hand, the petitioner has challenged the publication of the auction notice dated 15.01.2024 in the 'Daily Purbakon' by respondent No.7 under section 12(3) of the Artha Rin Adalat Ain, 2003 for selling the mortgaged property in auction scheduled to be held on 12.02.2024. On 23.04.2024 the writ petition has been sworn in and on 25.04.2024 upon hearing this Court was pleased to issue Rule Nisi in tandem with an interim order of stay of all further proceedings of the auction pursuant to the notice.

The respondent Nos. 4-7 by filing an affidavit-in-opposition apprised this Court that the property cannot be sold in auction due to the order of stay of this Court and the scheduled date of the auction i.e. 12.02.2024 has been expired in the meantime and as such, the impugned auction notice published on 15.01.2024 in the 'Daily Purbakon' under section 12(3) of the Artha Rin Adalat Ain, 2003 has no effectiveness, consequently the Rule has become infructuous.

Considering the facts and circumstances of the case, the Rule is discharged.

No order as to cost.

The order of stay granted at the time of issuance of the Rule is hereby by recalled and vacated.

Communicate the order at once.

Md. Abdul Mannan, J:

I agree.